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IN THE FAMILY DIVISION
OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

IN THE MATTER OF:

EVAKAY BALDES, AND
ALEXIS CLARK,

Minor Children.

)
) Case No. JV24-00104
) JV24-00105

) Dept. No. JM1
)

FIRST AMENDED PETITION FOR HEARING AS TO DONOVAN CLARK

I.

The following children are the subject of this Petition:

Evakay Baldes (“Evakay”), whose date of birth is October 19, 2009, and Alexis Clark (“Alexis”), whose date of birth is February 24, 2014. The children’s primary residential address at the time of removal was 6550 Pyramid Way, #37, Sparks, Nevada 89436.

There is no indication the children are Indian Children within the meaning of the Indian Child Welfare Act of 1978.

The mother of the above-named children is Megan McCafferty (“Ms. McCafferty”), whose date of birth is August 25, 1991, and whose residential address is 6550 Pyramid Way, #37, Sparks, Nevada 89436.

The presumed father of Alexis is Donovan Clark (“Mr. Clark”), whose date of birth is March 20, 1985, and whose residential address is 6550 Pyramid Way, #37, Sparks, Nevada

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1 89436. Mr. Clark and Ms. McCafferty resided together for six months prior to and through the
2 period of conception. Mr. Clark is identified as the father of Alexis on her birth certificate.

3 The legal father of Evakay is Justin Baldes (“Mr. Baldes”), whose date of birth is October
4 3, 1990, and whose residential address is 739 S 14th Street, Worland, Wyoming 82401. Ms.
5 McCafferty reported there is an active child support order in Wyoming establishing Mr. Baldes
6 as Evakay’s father.

7 II.

8 The minor children are in protective custody pursuant to an order of Master Testa after a
9 protective custody hearing on January 26, 2024. The minor children were removed from
10 parental custody on January 23, 2024, by Washoe County Human Services Agency (“WCHSA”).

11 Evakay and Alexis are placed in compliance with NRS 432B.3905 as they are placed
12 together in a foster home to avoid the separation of siblings.

13 III.

14 Petitioner, WCHSA, is informed and believes the above-named children are minor
15 children under 18 years of age and are in need of protection pursuant to NRS 432B.330(1)(b) as
16 Ms. McCafferty a person responsible for their welfare, subjected them to neglect, based upon the
17 following allegations:

- 18 (a) Ms. McCafferty was aware of Mr. Clark’s methamphetamines use and left him to
19 be the sole caregiver for the children while she worked.
- 20 (b) The children reported to Ms. McCafferty that they have found methamphetamines
21 and drug paraphernalia in the home on several occasions.
- 22 (c) Ms. McCafferty was aware of Mr. Clark’s untreated mental health issues that
23 impacts the safety of the children and has allowed him to remain in the home and
24 act as the sole care provider for the children.
- 25 (d) Domestic violence occurs in the home which impacts the safety and physical
26 wellbeing of the children.

1 IV.

2 Petitioner, WCHSA, is informed and believes the above-named children are minor
3 children under 18 years of age and are in need of protection pursuant to NRS 432B.330(1)(b) as
4 Mr. Clark, a person responsible for their welfare, subjected them to neglect, based upon the
5 following allegations:

- 6 (a) Mr. Clark has a history of substance use and has used methamphetamines while
7 being the sole care provider for the children. Mr. Clark's substance use impacts
8 the safety of the children.
- 9 (b) Mr. Clark left methamphetamines and drug paraphernalia out and accessible to
10 the children and the children found these substances.
- 11 (c) At the time of removal, Mr. Clark was not actively seeking treatment for his
12 mental health issues which impacted his ability to safely care for the children.
- 13 (d) Domestic incidents occurred in the home which impacted the safety and physical
14 wellbeing of the children.

15 V.

16 Petitioner, WCHSA, is informed and believes Evakay is a minor child under 18 years of
17 age and is in need of protection pursuant to NRS 432B.330(1)(b) as Mr. Baldes, a person
18 responsible for her welfare, subjected her to neglect, based upon the following allegations:

- 19 (a) Ms. McCafferty reports having a life long protection order, that includes Evakay,
20 against Mr. Baldes; however, at this juncture, WCHSA has been unable to verify this.
- 21 (b) Ms. McCafferty reports receiving inconsistent child support from Mr. Baldes.
- 22 (c) Mr. Baldes has not provided physical care of Evakay or had contact with Evakay
23 since 2012.
- 24 (d) Mr. Baldes does not have a relationship with Evakay.
- 25 (e) Mr. Baldes has taken no steps to ensure Evakay is living in a safe environment where all
26 of her needs are met.

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VI.

It would be in the best interest and welfare of the minor children that a hearing be set.

WHEREFORE, Petitioner respectfully requests a hearing be set pursuant to NRS Chapter 432B, and, pending the hearing, the children remain in the custody of Petitioner.

AFFIRMATION PURSUANT TO NRS 239B.030

The undersigned does hereby affirm that the preceding document does not contain the personal information of any person.

/s/ Tyler E. Beach
Deputy District Attorney
Attorney for Petitioner